

Standard Weights and Measures Act, 1968

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 29

Standard Measurement and Weight Act, 2025

Date of Royal Seal and Publication

2025.7.9

Amending Acts

1. Standard Measurement and Weight (First Amendment) Act, 2033 2033.7.4
2. Standard Measurement and Weight (Second Amendment) Act, 2042 2042.6.9
3. Judicial Administration Reform (Fourth Amendment) Act, 2043 2043.7.24
4. Standard Measurement and Weight (Third Amendment) Act, 2044 2044.6.9
5. Standard Measurement and Weight (Fourth Amendment) Act, 2045 2045.7.10
6. Judicial Administration Act, 2048 2048.2.16

Certification and Publication Date

7. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.1.07
8. Some Nepal Acts Amendment Act, 2072 2072.11.13
9. Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074 2074.6.30
10. Some Nepal Acts Related to the Civil Code Amendment Act, 2075 2076.01.02
11. Standard Measurement and Weight (Fifth Amendment) Act, 2079 2079.5.28

Act No. 17 of the Year 2025

An Act made to establish and bring into use standards of measurement and weight based on the metric system

Preamble: Whereas it is desirable to establish and bring into use standards of measurement and weight based on the metric system throughout Nepal [omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066]. Therefore, His Majesty King Mahendra Bir Bikram Shah Dev, with the advice and consent of the National Panchayat, has enacted this Act. Chapter-1

Preliminary

1. Short Title, Extent and Commencement: (1) This Act may be called the "Standard Measurement and Weight Act, 2025".

(2) This Act shall extend to the whole of Nepal [omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066].

(3) This Section shall come into force immediately, and the other Sections shall come into force in such place, from such date, and in relation to such transaction or goods as the Nepal Government may, by notification published in the Nepal Gazette, specify. [Dates of notifications published in the Nepal Gazette

regarding the coming into force of the Standard Measurement and Weight Act, 2025:-

- (1) 2027.5.15 (2) 2028.3.14 (3) 2030.3.18 (4) 2031.5.31
- (5) 2031.7.26
- (6) 2032.9.16 (7) 2032.12.16 (8) 2033.4.4 (9) 2033.7.16
- (10) 2034.1.20
- (11) 2034.7.15 (12) 2034.11.9 (13) 2036.1.10 (14) 2036.9.9
- (15) 2036.11.17
- (16) 2037.8.23 (17) 2039.3.7 (18) 2040.7.21]

2. Definitions: Unless the subject or context otherwise requires, in this Act-

(a) [omitted by the Fifth Amendment].

(b) [omitted by the First Amendment].

(c) "Normal atmospheric pressure" means a pressure of 101325 Newtons per square meter.

Explanation: The force that accelerates a mass of one kilogram at a rate of one meter per second squared is considered one Newton. (d) "Commercial measure or weight" means a standard measure or weight used in commerce and trade transactions. (e) "Measuring instrument" means any instrument for measuring other than a weighing instrument, and this term includes instruments for measuring or counting length, area, volume, or capacity. (f) "Weighing instrument" means all kinds of weighing instruments used for weighing, including a balance with two pans and the weights used therein. (g) "Sealed package" means a closed packet, bottle, cask, tin, barrel, box, vessel, bag, sack, or any other such packaged article kept with the intention of selling, at the time of sale, without measuring or weighing the article contained therein. (h) "Stamp" means a stamp affixed by casting, engraving, carving, branding, or in any manner so as to be as indelible as possible, and [added by the Fifth Amendment]. said term also includes a seal certified by an Inspector affixed to an instrument where such a seal cannot be applied, by being stuck in a manner that does not easily come loose or fall off. (i) "Inspection" means the act of examining or testing a measure or weight or a measuring or weighing instrument, and this term also includes re-inspection. (j) "Controller" means the [amended by the Second Amendment]. Director General of the Department. (k) "Inspector" means an officer appointed or designated by the Nepal Government for the purposes of this Act. [Designated by notification published in the Nepal Gazette dated 2027.11.10]. (k1) [Added by the First Amendment]. "General Conference on Weights and Measures" means the Conference Générale des Poids et Mesures established under the Convention du Mètre. (k2) [Added by the First Amendment]. "International Bureau of Weights and Measures" means the Bureau International des Poids et Mesures established under the Convention du Mètre. (k3) [Added by the First Amendment]. "International Organization of Legal Metrology" means the Organisation Internationale de Métrologie Légale established under the Convention Instituant une Organisation Internationale de Métrologie Légale. (l) "Prescribed" or "as prescribed" means as prescribed in the Rules made under this Act. (m) [Added by the Fifth Amendment]. "Department" means the Nepal Bureau of Standards and Metrology. Chapter-2 Standard Measures and Weights 2a.

Units of Measurement and Weight: [Added by the First Amendment]. (1) Each unit of measurement and weight shall be based on the metric system. (2) For the purposes of sub-section (1)- (a) the units of the International System recommended by the General Conference on Weights and Measures, and (b) other additional units recommended by the International Organization of Legal Metrology, shall be the units of the metric system. 3. Metre: (1) The metre shall be the base unit of length. (2) "Metre" means the distance travelled by light in a vacuum during a time interval of $\frac{1}{299792458}$ of a second. (3) [Amended by the Fifth

Amendment]. The Nepal Government shall have one national standard of the metre constructed for deriving the value of the metre. Such standard metre shall be certified according to the international standard of the metre and kept in the Department under the charge of the Controller. 4. Kilogram: (1) The kilogram shall be the base unit of mass. (1a) [Added by the Fifth Amendment]. "Kilogram" means the mass derived on the basis of the fixed numerical value of the Planck constant, $6.62607015 \times 10^{-34}$, expressed in the unit joule second, where the joule second equals kilogram square metre per second. [Amended by the Fifth Amendment]. (2) The Nepal Government shall have one national standard of the kilogram constructed for deriving the value of the kilogram. Such standard shall be certified according to the international kilogram standard or the national standard of another country made according to it, and kept in the Department under the charge of the Controller. (3) Notwithstanding anything contained in sub-section (1) and Section 8a., for precious stones, the base unit of mass shall be one carat, which is equal to one five-thousandth part of a kilogram. (4) At any place, the standard unit of weight shall be the weight of the base unit of mass at that place. 5. Second: [Amended by the Fourth Amendment]. (1) The second shall be the base unit of time. [Amended by the First Amendment]. (2) It means the duration of 9192631770 periods of the radiation corresponding to the transition between the two hyperfine levels of the ground state of the caesium-133 atom. 6. Ampere: [Amended by the Fourth Amendment]. (1) The ampere shall be the base unit of electric current. [Amended by the Fifth Amendment]. (2) "Ampere" means the electric current derived on the basis of the fixed numerical value of the elementary charge of electricity, $1.602176634 \times 10^{-19}$, expressed in the unit coulomb, where the coulomb equals ampere second. [Amended by the First Amendment]. 7.

Kelvin: [Amended by the Fourth Amendment]. (1) The kelvin shall be the base unit of thermodynamic temperature. [Amended by the Fifth Amendment]. (2) "Kelvin" means the thermodynamic temperature derived on the basis of the fixed numerical value of the Boltzmann constant, 1.380649×10^{-23} , expressed in the unit joule per kelvin, where the joule per kelvin equals kilogram square metre per second squared per kelvin. (3) The kelvin shall also be used to express a temperature interval. (4) The degree Celsius, which is equal to 273.15 kelvin, of the International Practical Temperature Scale [omitted by the Fifth Amendment]. (5) The degree Celsius may also be used to express a temperature interval. 8. Candela: [Amended by the Fourth Amendment]. (1) The candela shall be the base unit of luminous intensity. [Amended by the First Amendment]. (2) "Candela" means the luminous intensity, in the perpendicular direction, of a surface of $1/600000$ square metre of a black body at the temperature of freezing platinum under a pressure of 1.1325 Newton per square metre. [Added by the First Amendment]. 8a. Mole: [Amended by the Fourth Amendment]. (1) The mole shall be the base unit of amount of substance. [Amended by the Fifth Amendment]. (2) "Mole" means exactly $6.02214076 \times 10^{23}$ numerical values of elementary entities such as atoms, molecules, ions, electrons. This number is the fixed numerical value of the Avogadro constant, expressed in the unit per mole. Explanation: When the mole is used, the elementary entities must be specified and may be atoms, molecules, ions, electrons, other particles, or specified groups of such particles. [Added by the First Amendment]. 8b. Prescribing other units of measurement and weight: (1) The supplementary, derived or other units related to the base units of measurement and weight, or standard reproductions or definitions, as recommended by the General Conference on Weights and Measures and the International Organization of Legal Metrology, shall be as prescribed. Explanation: "Derived units" means units derived from base or supplementary units or from both. (2) The multiples, sub-multiples, physical constants, and ratios of coefficients relating to units of measurement or weight recommended by the General Conference on Weights and Measures or the International Organization of Legal Metrology shall be as prescribed. (3) The Nepal Government may, by notification published in the Nepal Gazette, prescribe special units of measurement and weight as recommended by the General Conference on Weights and Measures or the International

Organization of Legal Metrology, for such period as may be necessary. [Added by the First Amendment]. 8c.

International Units in Nepali Numerals: (1) The base unit of counting shall be Nepali numerals based on international units, [added by the Fifth Amendment]. and English numerals may be used as required. (2) Every calculation shall be in the decimal system. (3) The decimal multiples and sub-multiples of counting shall be written according to the prescribed nomenclature and method. [Added by the First Amendment]. 8d. Standard Units: The base units of measurement or weight specified in Sections 3, 4, 5, 6, 7, 8, and 8a., and the supplementary and other units as prescribed under Section 8b., shall be the standard units of measurement or weight. 9. [Repealed by the First Amendment]. 10. [Repealed by the First Amendment]. 11. [Repealed by the First Amendment]. 12. [Repealed by the First Amendment]. 13. [Repealed by the First Amendment]. 14. Permission may be given to keep certain types of measure and weight in use: Even if this Act applies to any place, transaction, or goods in Nepal [omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066] , the Nepal Government may, by notification published in the Nepal Gazette, permit, for a maximum period of five years, the continued use of any other measure and weight, in addition to the standard quantity and measure, specified in that notification, in relation to such place, transaction, or goods. Provided that the Nepal Government shall not, under sub-section (1), grant permission to bring into use any measure or weight that was not in immediate use before this Act came into force. 15. Conversion of existing measures and weights into standard measures and weights: (1) The quantities of measures and weights in use before the commencement of this Act may be converted into standard measures or weights at the proportional rates mentioned in the Schedule. (2) The Nepal Government may, by notification published in the Nepal Gazette, prescribe the proportional rates for converting the quantities of measures or weights other than those mentioned in sub-section (1) into standard measures or weights. (3) Any quantity of a measure or weight other than a standard quantity or measure mentioned in any Act or any Rule, order, or notification made under an Act, or in any contract or deed, shall be deemed to have been converted into the proportional rate mentioned in the Schedule or in a notification issued under sub-section (2), as the case may be. (4) When converting the quantity of any measure or weight expressed in relation to any transaction or dealing into a standard quantity or measure under this Section, the conversion shall be made in the manner prescribed for such transaction or dealing. 16.

Primary Standard: (1) The Nepal Government may have sets of the standard quantities and measures referred to in Section 8d. or their multiples or sub-multiples constructed. Such sets shall be called Primary Standards. (2) The Primary Standard shall be of the prescribed material, design, and specification. It shall be certified and stamped by the prescribed person or officer and kept [amended by the Fifth Amendment] in the Department as prescribed, and within every prescribed period, it shall be verified against the national [amended by the Fourth Amendment] standard, and a certificate with the date of such verification shall be affixed to it. 17. Secondary Standard: (1) The Nepal Government may have sets of certified standard measures and weights prepared as required for verifying the correctness of working standards. Such sets shall be called Secondary Standards. (2) The Secondary Standard shall be of the prescribed material, design, and specification. It shall be certified and stamped by the prescribed person or officer and kept [amended by the Fifth Amendment] in the Department as prescribed, and within every prescribed period, it shall be verified against the Primary Standard, and a certificate with the date of such verification shall be affixed to it. (3) A Secondary Standard that has not been verified and stamped within the period under sub-section (2) shall have no legal validity and shall not be used for the purposes of this Act. 18. Working Standard: (1) The Nepal Government may have such number of sets of certified measures and weights and special sets of working measures and weights for precious metals and jewels constructed as it may deem necessary for verifying the correctness of commercial measures and weights or measuring and weighing

instruments brought into commercial use. Such sets shall be called Working Standards. (2) The Working Standard shall be of the prescribed material, design, and specification. It shall be certified and stamped by the prescribed person or officer in the prescribed manner and kept [amended by the Fifth Amendment] in the place specified by the Controller as prescribed, and within every prescribed period, it shall be verified against the Secondary Standard, and a certificate with the date of such verification shall be affixed to it. Provided that the special Working Standard set relating to precious metals and jewels shall be verified against the Primary Standard. (3) A Working Standard that has not been verified and stamped within the period under sub-section (2) shall have no legal validity and shall not be used for the purposes of this Act. 19.

Standard Measuring and Weighing Instruments: (1) The Nepal Government shall have such measuring and weighing instruments constructed as are required for verifying commercial measures and weights or measuring and weighing instruments brought into commercial use. (2) The measuring and weighing instruments under sub-section (1) shall be verified and stamped as prescribed and kept in the prescribed manner and number. (3) Sets of measuring and weighing instruments under sub-section (1) shall be kept at the place where the Secondary or Working sets are kept. 19a. Not to make or use counterfeit measuring or weighing devices: [Added by the Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074]. (1) No person shall, in relation to any device for measuring, weighing or determining quality, make or cause to be made such device that is less or more than the prescribed standard, or knowingly use or keep or sell with the intent to use as genuine a device so made, or forge the stamp or seal to be affixed to such device, or knowingly deface the stamp or seal of a device for measuring, weighing or determining quality with malicious intent, or affect the measuring, weighing or quality determining capacity of such device with the help of any other device, or affix a forged stamp or seal on such device, or by any other means cause the established measure or weight to become less or more. Explanation: For the purposes of this Section, "device for measuring, weighing or determining quality" means a device legally in use for determining the unit, quality or quantity of any goods or service, or the purity or standard of such goods or service, or the unit of any goods. (2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for up to three years and a fine of up to thirty thousand Rupees. (3) Any device made or brought into use under sub-section (1), including the tools for making or repairing it, shall be confiscated. 19b.

Not to use measuring, weighing or quality determining devices fraudulently: [Added by the Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074]. (1) No person, while using a device for measuring, weighing or determining quality in the course of any business, transaction or trade, shall fraudulently use it so as to make the measure, weight or standard less or more than that determined by law for such device, or adversely affect the established measuring, weighing or quality determining capacity of such device with the help of any other device or means. (2) A person committing or causing to commit an offence under sub-section (1) shall be liable to imprisonment for up to three years and a fine of up to thirty thousand Rupees. 20. No measure or weight other than standard measure and weight to be brought into use: (1) Notwithstanding anything contained in any law in force or in practice, except where the Nepal Government otherwise permits under Sections 14 and 24, after three months from the application of this Act, within the area where this Act applies or in relation to the transaction and goods to which this Act applies, no other type of measure or weight other than the standard measure or weight shall be used, nor shall the price or quantity of any article be fixed by any unit of such measure or weight. (2) If any trader, seller, or customer, in any contract or transaction relating to any article of trade according to any custom, usage, practice, or dealing, demands, takes, or causes to demand or take, any quantity exceeding or falling short of the quantity fixed by the measure or weight, such custom, usage, practice, or dealing shall be deemed to have been invalidated from the date this Act comes into force. (3) Any act or transaction contrary to sub-section (1) shall have no

legal validity. [Added by the Fifth Amendment]. (4) A person or entity producing or selling or distributing goods shall keep a measure or weight or a measuring or weighing instrument at the relevant industry or sales or distribution site to ascertain the quantity of the measure or weight of the goods they produce or sell or distribute. [Added by the Fifth Amendment]. (5) When conducting a commercial transaction, the measure or weight or the measuring or weighing instrument as permitted for such transaction shall be used. No transaction shall be conducted by any other method without using such measure or weight or measuring or weighing instrument. 21.

Direction may be given to use only measurement or only weight for certain matters: Notwithstanding anything contained in this Act, the Nepal Government may, by notification published in the Nepal Gazette, direct that, from a date specified in that notification, within a specified area, in relation to any specified trade, transaction or contract, subject to specified conditions, business shall be conducted only by measurement or only by weighing. [Added by the Fifth Amendment]. 21a. Functions, Duties and Powers of the Department: In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Department shall be as follows: (a) to act as the central body regarding metrology, (b) to establish standards of units of measurement and weight and to preserve such standards, (c) to establish traceability in accordance with the international system of standards, (d) to inspect or cause to be inspected measures or weights or measuring or weighing instruments used for commercial purposes, (e) to carry out public awareness activities regarding the use of measuring and weighing instruments, (f) to monitor or cause to be monitored, in coordination with the relevant body of the province or local level, whether standard measures and weights or measuring and weighing instruments are used in accordance with this Act, (g) to resolve any disputes arising regarding the quantity of measure or weight, (h) to provide calibration services, and (i) to contact, coordinate and cooperate with international organizations related to metrology. [Added by the Fifth Amendment]. 21b. Metrology Laboratory: There shall be a national-level metrology laboratory in the Department for carrying out work related to inspection, study, research and development concerning metrology. Chapter-3 Inspection and Stamping of Measures and Weights 22. Quantity and denomination to be inscribed on commercial measures and weights: Commercial measures or weights shall have the denomination and quantity of the measure or weight clearly inscribed thereon, and shall bear a clear impression of inspection as prescribed. 23. Prohibition on sale, distribution or use of unstamped commercial measures and weights: Except as otherwise provided in Section 24, no commercial measure or weight or measuring or weighing instrument that has not been inspected as prescribed and stamped with the stamp of such inspection by an Inspector shall be sold, distributed or brought into use. [Added by the Fifth Amendment]. 23a.

Power to prohibit, take control of or confiscate: (1) If any person is found selling, distributing or using a measure or weight or a measuring or weighing instrument contrary to this Act, the Inspector may prohibit the use of, take control of, or confiscate such measuring or weighing instrument. (2) The procedure for prohibiting use, taking control of, or confiscating a measure or weight or a measuring or weighing instrument under sub-section (1) shall be as prescribed. 24. Power of Nepal Government to grant exemption: The Nepal Government may, by notification published in the Nepal Gazette, make the following arrangements: (a) to permit the use, in any particular type of transaction or in trade with foreign countries, of measures, weights, or measuring or weighing instruments of any system other than the metric system, even if not inspected, upon mere certification, (b) to permit bringing into use any particular type of measuring or weighing instrument only after it has been inspected, and (c) to exempt any particular type of measuring or weighing instrument from the requirement of inspection. 25. License required to use measure, weight or measuring, weighing instrument: A trader or businessman shall, within the prescribed time, pay the prescribed fee, register their

name, and obtain a license [amended by the Second Amendment]. from the Inspector to use a measure, weight or measuring, weighing instrument. [Amended by the Fourth Amendment]. 26. Not to be done without obtaining a license: No person shall, without obtaining a license as prescribed from an Inspector upon payment of the prescribed fee, in the course of their business, manufacture, repair, sell commercial measures or weights or measuring instruments or weighing instruments, or carry on the business of prescribed measuring or weighing services. [Added by the Fifth Amendment]. 26a. Model Approval to be obtained: (1) A person or entity wishing to manufacture or import a measuring or weighing instrument shall obtain model approval from the Department before manufacturing or importing such instrument. (2) The form of a measuring or weighing instrument manufactured or imported under sub-section (1) shall not be altered. (3) The procedure for granting approval under sub-section (1) shall be as prescribed. [Amended by the Fifth Amendment]. 27. Measurement and weight of sealed packages: (1) The measure or weight of the article contained in a sealed package shall be clearly mentioned and labeled.

28. Functions and duties of Inspector: (1) The Inspector shall inspect measures and weights and measuring and weighing instruments in the area and at the time specified by the Controller.

(2) The Inspector shall inspect the measures or weights or measuring or weighing instruments brought before him/her for inspection in accordance with this Act and the Rules made hereunder, and if found correct, shall, upon receipt of the prescribed fee, affix the prescribed inspection stamp.

(3) No measure or weight or measuring or weighing instrument required to be inspected shall be kept without inspection.

(4) The Inspector may proceed to any place where commercial measures or weights or measuring or weighing instruments are kept, or where articles sold or given by such measures or weights or measuring or weighing instruments are located, and inspect them, or inspect the measure or weight of articles so sold or given.

(5) The Inspector may order any trader or any person appointed by him/her for work to produce the measures or weights or measuring or weighing instruments used by such trader or person, or in their possession, or kept at any place for the purpose of trade, and all related documents, and such trader or person shall also produce the instruments or documents as ordered.

(6) If an Inspector has reason to suspect that any person has committed or is about to commit any offence under this Act in relation to measures or weights or measuring or weighing instruments, he/she may take possession of such measures or weights or measuring or weighing instruments, or articles sold or given or about to be given by such measures or weights or measuring or weighing instruments, and all related documents.

(7) If an Inspector has reason to suspect that the measure or weight of an article in any sealed package is less than the measure or weight mentioned on the label of such package, he/she may break the seal of such package and inspect the measure or weight of the article contained in the package.

(8) If, upon inspection under sub-section (7), the measure or weight of the article of the package is found to be incorrect, the Inspector may take possession of the package and its contents, and if found correct, he/she shall pay the reasonable price of the package to its owner.

[Added by the Fifth Amendment]. (9) If any body or office of the province or local level within the Inspector's jurisdiction requests consultation regarding measures or weights or measuring or weighing instruments, the

Inspector shall provide consultation thereon.

[Amended by the Fifth Amendment]. 29.

Appeal: An appeal against a decision or sentence order made by an Inspector under this Act may be filed before the Controller, and an appeal against a decision or sentence order made by a District Court may be filed before the concerned High Court, within thirty-five days. Chapter-4 Penalties [Amended by the Fifth Amendment]. 30. Penalty: (1) The Inspector shall impose a fine on a person or entity committing the following offences, as follows: (a) for acting or causing to act contrary to sub-section (4) of Section 20, a fine of one thousand Rupees to five thousand Rupees, (b) for failing to comply with a direction given by the Nepal Government under Section 21, or for acting contrary to such direction, a fine of five thousand Rupees to ten thousand Rupees, (c) for using a measure or weight or a measuring or weighing instrument contrary to Section 25, a fine of one thousand Rupees to five thousand Rupees, (d) for doing any act contrary to Section 27, a fine of five thousand Rupees to ten thousand Rupees, (e) for selling or transacting on the basis of the measure or weight of any article, if the quantity taken or received or given or delivered is less or more than the quantity fixed by the measure or weight on the basis of which the purchase, sale or transaction was made, a fine of five thousand Rupees to twenty-five thousand Rupees, but in the case of construction materials, gold, silver or precious metals, petroleum products, LPG cylinders, or industries, a fine of fifty thousand Rupees to one hundred thousand Rupees.

Explanation: For the purposes of this clause, "construction materials" includes cement, rebar, bricks, gravel, sand, geotextiles, paint, cement board, wood used for doors and windows, glass, UPVC, and electric wire.

(f) for doing any act contrary to sub-sections (1) and (5) of Section 20, Section 23, Section 26 and Section 26a., for carrying on an industry committing such act, for abetting any person to commit such act, or for obstructing or hindering an Inspector in the performance of his/her duty under this Act, a fine of up to twenty-five thousand Rupees, and

(g) for any other act contrary to this Act not mentioned in this Section, a fine of up to ten thousand Rupees.

(2) If any person makes or causes to make any standard measure or weight or measuring or weighing instrument counterfeit or less or more, or knowingly uses or keeps with the intention of using or sells or causes to sell such counterfeit or less or more measuring or weighing instrument as genuine, or defaces the stamp to be affixed to a standard measure or weight or measuring or weighing instrument under this Act, or affixes or causes to affix a forged stamp, or makes or keeps a forged stamp, or uses any other instrument or such article other than the actual measure or weight or measuring or weighing instrument to cause less or more, or keeps or causes to keep with the intention of causing less or more, or uses any technology to create fake software to cause less or more in the quantity of measure or weight, such person shall be liable to imprisonment for up to three years or a fine of three hundred thousand Rupees to five hundred thousand Rupees or both.

(3) If an Inspector knowingly affixes a stamp on a measure or weight or a measuring or weighing instrument contrary to this Act, he/she shall be liable to imprisonment for up to one year or a fine of up to ten thousand Rupees or both.

[Added by the Second Amendment]. 30a. Recovery as government dues: (1) A fine that is required to be deposited pursuant to a decision made by an Inspector under this Act shall be deposited with the concerned office within thirty-five days from the date of such decision.

(2) If the amount of fine is not deposited within the period under sub-section (1), such amount shall be recovered by the office or officer specified by the Nepal Government as a government due in accordance with the prevailing law. Chapter-5

Miscellaneous

31.

Legal validity of stamped measures, weights or measuring, weighing instruments: A measure or weight or a measuring or weighing instrument stamped in accordance with this Act or the Rules made hereunder shall be deemed correct until proven incorrect by a court. 32. Liability for offences by body corporate or firm: (1) If an offence under this Act is committed by a body corporate or a firm, at the time of such offence, the partner in the case of a firm, and the main administrative officer or officers managing such entity in the case of a body corporate, shall be deemed guilty and liable for punishment. Provided that such partner or main administrative officer or officers shall not be liable for punishment if they prove that they tried their best to prevent such offence or that they had no knowledge of such offence. (2) Notwithstanding anything contained in sub-section (1), if a body corporate or a firm commits an offence under this Act, and it is proven that such offence occurred with the consent or negligence of a partner in the case of a firm, or of the main administrative officer or officers in the case of a body corporate, such partner or main administrative officer or officers shall be deemed to have committed the offence and shall be liable for punishment. 33. Protection for acts done in good faith: No government employee shall be prosecuted or subjected to any other legal proceedings in respect of any act done or intended to be done in good faith under this Act. [Amended by the Some Nepal Acts Related to the Civil Code Amendment Act, 2075]. 33a. Investigation of cases: (1) Investigation and diary of cases relating to offences punishable under Sections 19a., 19b. and sub-section [amended by the Fifth Amendment]. (2) of Section 30 shall be conducted by the Inspector. (2) Investigation and diary of cases relating to offences punishable under sub-section [amended]

STANDARDS OF WEIGHTS AND MEASURES ACT, 2025

Date of Seal and Publication

2025.7.9

Amending Acts

1. Standards of Weights and Measures (First Amendment) Act, 2033

2033.7.4

2. Standards of Weights and Measures (Second Amendment) Act, 2042

2042.6.9

3. Judicial Administration Reform (Fourth Amendment) Act, 2043

2043.7.24

4. Standards of Weights and Measures (Third Amendment) Act, 2044

2044.6.9

5. Standards of Weights and Measures (Fourth Amendment) Act, 2045

2045.7.10

6. Judicial Administration Act, 2048

2048.2.16

Date of Certification and Publication

7. Republic Strengthening and Some Nepal Laws

Amendment Act, 2066?

2066.10.7

8. Some Nepal Acts Amendment Act, 2072

2072.11.13

9. Some Nepal Laws Amendment, Codification, Adjustment
and Repeal Act, 2074

2074.6.30

10. Some Nepal Acts Relating to the Civil Code
Amendment Act, 2075

2076.1.2

11. Standards of Weights and Measures (Fifth Amendment) Act, 2079

2079.5.28

Act No. 17 of the year 2025

An Act Made to Establish and Bring into Use the Standard of Weights and Measures Based on the Metric System

Preamble: Whereas it is desirable to make provision for establishing and bringing into use the standard of weights and measures based on the metric system throughout Nepal ,

His Majesty King Mahendra Bir Bikram Shah Deva has enacted this Act with the advice and consent of the National Panchayat. Chapter?1

Preliminary

1. Short Title, Extent and Commencement: (1) The name of this Act is "Standards of Weights and Measures Act, 2025".

(2) This Act shall extend to the whole of Nepal

(3) This Section shall come into force immediately, and other Sections shall come into force in the place, from the date and in respect of the transaction or goods specified by the Government of Nepal by notification published in the Nepal Gazette. ?

2. Definitions: Unless the subject or context otherwise requires, in this Act?

(a) ?

Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.

? Date of publication of notice in Nepal Gazette regarding the coming into force of the Standards of Weights and Measures Act, 2025:?

(1) 2027.5.15 (2) 2028.3.14 (3) 2030.3.18 (4) 2031.5.31

(5) 2031.7.26

(6) 2032.1.15 (7) 2032.12.16 (8) 2033.4.4 (9) 2033.7.16

(10) 2034.1.20

(11) 2034.7.15 (12) 2034.11.9 (13) 2036.1.10 (14) 2036.9.9

(15) 2036.11.7

(16) 2037.8.23 (17) 2039.3.7 (18) 2040.7.21

(b) ?

(c) "Normal atmospheric pressure" means a pressure of 101,325 Newtons per square metre.

Explanation: The force that accelerates a mass of one kilogram at a rate of one metre per second is considered a Newton.

(d) "Commercial weight or measure" means the standard weight and measure used in commercial and trade transactions.

(e) "Measuring instrument" means any measuring instrument other than a weighing instrument, and this term also includes an instrument for measuring or counting length, area, volume or capacity.

(f) "Weighing instrument" means all types of weighing instruments used in weighing, including a two-pan balance and the weights used in such balance.

(g) "Sealed package" means a closed bundle, bottle, keg, tin, barrel, box, vessel, bag, sack or any other such packaged article kept with the intention of selling it without taking any measurement or weight of the article contained therein at the time of sale.

(h) "Stamp" means a stamp applied by casting, engraving, carving, branding or in any manner so as to be as indelible as possible, and ?that term also includes a seal certified by an Inspector and affixed to an instrument on which such a seal cannot be affixed, in such a way that it does not easily come off or loosen.

(i) "Examination" means the act of checking or testing a weight or measure or a measuring or weighing instrument, and this term also includes the act of re-examination.

?(j) "Controller" means the Director General of ? Department.

?(k) "Inspector" means an officer appointed or designated by the Government of Nepal for the purposes of this Act.?

+(ka) "General Conference of Weights and Measures" means the Conference Générale des Poids et Mesures established under the Convention du Mètre.

(kha) "International Bureau of Weights and Measures" means the Bureau International des Poids et Mesures established under the Convention du Mètre.

(ga) "International Organization of Legal Metrology" means the Organisation Internationale de Métrologie Légale established under the Convention de l'Organisation Internationale de Métrologie Légale.

(l) "Prescribed" or "as prescribed" means as prescribed in the Rules made under this Act.

(da) "Department" means the Nepal Bureau of Standards and Metrology. Chapter 2
Standard Weights and Measures

2a. Units of Weights and Measures: (1) Every unit of weight and measure shall be based on the metric system.

(2) For the purpose of sub-section (1)?

(a) units of the International System recommended by the General Conference of Weights and Measures, and

(b) other additional units recommended by the International Organization of Legal Metrology, shall be the units of the metric system.

3. Metre: (1) The metre shall be the base unit of length.

(2) "Metre" means the distance travelled by light in a vacuum during a time interval of $1/299,792,458$ of a second.

5(3) The Government of Nepal shall prepare a national standard of metre for deriving the value of the metre. Such standard metre shall be certified in accordance with the international standard of the metre and kept in the Department under the charge of the Controller. 4. Kilogram: (1) The kilogram shall be the base unit of mass. (1a) "Kilogram" means the magnitude derived on the basis of the fixed numerical value of the Planck constant expressed in the unit joule second, which is $6.62607015 \times 10^{-34}$, and the joule second equals kilogram square metre per second. 5(2) The Government of Nepal shall prepare a national standard of kilogram for deriving the value of the kilogram. Such standard shall be certified in accordance with the international standard of the kilogram or the national standard of another country made according to it, and kept in the Department under the charge of the Controller. (3) Notwithstanding anything contained in sub-section (1) and Section 8kha., for precious stones, the base unit of mass shall be one carat, which is equal to one five-thousandth part of a kilogram. (4) In any place, the standard unit of weight shall be the weight of the base unit of mass in that place. 5. Second: (1) The second shall be the base unit of time. (2) It means the duration of 9,192,631,770 periods of the radiation corresponding to the transition between the two hyperfine levels of the ground state of the caesium-133 atom. 6. Ampere: (1) The ampere shall be the base unit of electric current. 5(2) "Ampere" means the electric current derived on the basis of the fixed numerical value of the elementary charge expressed in the unit coulomb, which is $1.602176634 \times 10^{-19}$, and the coulomb equals ampere second. 5 Amended by the Fifth Amendment. ? Amended by the Fourth Amendment. ? Amended by the First Amendment. 7. Kelvin: (1) The kelvin shall be the base unit of thermodynamic temperature. 5(2) "Kelvin" means the thermodynamic temperature derived on the basis of the fixed numerical value of the Boltzmann constant expressed in the unit joule per kelvin, which is 1.380649×10^{-23} , and the joule per kelvin equals kilogram square metre per square second per kelvin. (3) The kelvin shall also be used to denote a difference in temperature. (4) The degree Celsius of the International Practical Temperature Scale, which equals 273.15 kelvin, ? (5) The degree Celsius may also be

used to denote a difference in temperature. 8.

Candela: (1) The candela shall be the base unit of luminous intensity. (2) "Candela" means the luminous intensity, in the perpendicular direction, of a surface of $1/600,000$ square metre of a black body at the temperature of freezing platinum under a pressure of 1.1325 Newton per square metre. 8a. Mole: (1) The mole shall be the base unit of amount of substance. (2) Omitted by the Fifth Amendment. (3) Amended by the First Amendment. (4) Added by the First Amendment. (5) Amended by the Fourth Amendment. 5(2) "Mole" means the exact numerical value of $6.02214076 \times 10^{23}$ of elementary entities such as atoms, molecules, ions, electrons. That number is the fixed numerical value of the Avogadro constant, and it is expressed in the unit per mole. Explanation: When the mole is used, the elementary entities must be specified, and these may be atoms, molecules, ions, electrons, other particles, or specified groups of such particles. +8kha. Specification of Other Units of Weights and Measures: (1) Supplementary, derived or other units, or standard references or definitions, relating to the base units of weights and measures recommended by the General Conference of Weights and Measures and the International Organization of Legal Metrology, shall be as prescribed. Explanation: Derived units means units derived from the base or supplementary units or from both units. (2) Multiples, sub-multiples, physical constants, and ratios of coefficients relating to the units of weight or measure recommended by the General Conference of Weights and Measures or the International Organization of Legal Metrology shall be as prescribed. (3) The Government of Nepal may, by notification published in the Nepal Gazette, prescribe special units of weights and measures as recommended by the General Conference of Weights and Measures or the International Organization of Legal Metrology, for such period as may be necessary. +8ga. International Units to be in Nepali Numerals: (1) The base units of measurement shall be in Nepali numerals based on the international units, and English numerals may be used as necessary. (2) Every measurement shall be in the decimal system. (3) Decimal multiples and sub-multiples of measurement shall be written according to the prescribed symbols and methods. +8gha. Standard Units: The base units of weight or measure specified in Sections 3, 4, 5, 6, 7, 8, and 8a, and the supplementary and other units prescribed under Section 8kha, shall be the standard units of weight or measure. 9. 10. 11. 12. 13. 14.

Certain Kinds of Weights and Measures May be Allowed to Remain in Use: Notwithstanding that this Act has come into force in respect of any place, transaction or goods in Nepal, the Government of Nepal may, by notification published in the Nepal Gazette, permit the continued use, for a maximum period of five years, of any other weight or measure specified in that notification in addition to the standard mass and measure in respect of such place, transaction or goods. Provided, however, that the Government of Nepal shall not grant permission under sub-section (1) to introduce any weight or measure which was not in immediate use prior to the commencement of this Act. 15. Conversion of Existing Weights and Measures into Standard Weights and Measures: (1) The magnitude of weights and measures in use prior to the commencement of this Act may be converted into standard weights or measures at the conversion rates mentioned in the Schedule. (2) The Government of Nepal may, by notification published in the Nepal Gazette, prescribe the conversion rates for converting the magnitude of weights or measures other than those mentioned in sub-section (1) into standard weights or measures. (3) The magnitude of any weight or measure, other than standard mass or measure, mentioned in any Act, or in any rule, order or notification made under any Act, or in any contract or deed, shall be deemed to have been converted at the conversion rates mentioned in the Schedule or in the notification issued under sub-section (2), as the case may be. (4) When converting any magnitude of a weight or measure expressed in connection with any transaction or dealing into standard mass or measure under this Section, such conversion shall be made according to the method prescribed for such transaction or dealing. 16. Primary Standards: (1) The Government of Nepal may cause sets of the standard mass and

measure specified in ?Section 8gha. or multiples or sub-multiples thereof to be made. Such a set shall be called the Primary Standards. (2) Primary Standards shall be of the prescribed material, design and description. They shall be certified and stamped by the prescribed person or officer, and 5kept in the Department as prescribed, and shall be compared with the national ?standard and a certificate with the date of such comparison shall be affixed to them within every prescribed period. 17.

Secondary Standards: (1) For the purpose of checking the correctness of Working Standards, the Government of Nepal may cause sets of certified standard weights and measures to be prepared as necessary. Those sets shall be called Secondary Standards. (2) Secondary Standards shall be of the prescribed material, design and description. They shall be certified and stamped by the prescribed person or officer, and 5kept in the Department as prescribed, and shall be compared with the Primary Standards and a certificate with the date of such comparison shall be affixed to them within every prescribed period. (3) A

Secondary Standard which has not been examined and stamped within the period as per sub-section (2) shall have no legal validity and shall not be used for the purposes of this Act. 18. Working Standards: (1) For the purpose of checking the correctness of commercial weights and measures or measuring and weighing instruments brought into commercial use, the Government of Nepal may cause as many certified sets of weights and measures and special sets of working weights and measures for precious metals and gems to be made as it deems necessary. Those sets shall be called Working Standards. (2) Working Standards shall be of the prescribed material, design and description. They shall be certified and stamped by the prescribed person or officer in the prescribed manner, and ?kept in the place designated by the Controller as prescribed, and shall be compared with the Secondary Standards and a certificate with the date of such comparison shall be affixed to them within every prescribed period. Provided, however, that the special Working Standard sets for precious metals and gems shall be compared with the Primary Standards. (3) A Working Standard which has not been examined and stamped within the period as per sub-section (2) shall have no legal validity and shall not be used for the purposes of this Act. 19. Standard Measuring and Weighing Instruments: (1) Measuring and weighing instruments needed for examining commercial weights and measures or measuring and weighing instruments brought into commercial use shall be caused to be prepared by the Government of Nepal as necessary. (2) The measuring and weighing instruments under sub-section (1) shall be examined and stamped as prescribed, and kept in the prescribed manner and number. (3) Sets of measuring and weighing instruments under sub-section (1) shall be kept in the place where Secondary or Working sets are kept. 19ka.

Not to Make or Use Counterfeit Measuring or Weighing Instruments: (1) No person shall make or cause to be made any instrument for measuring, weighing or determining quality that is less or more than the prescribed standard, or knowingly use or keep or sell for the purpose of using such an instrument made in that manner as genuine, or counterfeit any stamp or mark to be affixed to such instrument, or knowingly damage a stamp or mark of an instrument for measuring, weighing or malafidely determining quality, or by the aid of any other instrument affect the capacity of such instrument to measure, weigh or determine quality, or affix a counterfeit stamp or mark to such instrument, or by any other means cause the weight or measure in use to become less or more. Explanation: For the purposes of this Section, "instrument for measuring, weighing or determining quality" means an instrument in use according to law for determining the unit, quality or quantity of any goods or service or the purity or standard of such goods or service or the unit of any goods. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for a term up to three years and a fine of up to thirty thousand rupees. (3) The instrument made or brought into use under sub-section (1), along with the tools for making or repairing it, shall be confiscated. 19kha. Not to Use Fraudulently Instruments for Measuring, Weighing or Determining Quality: (1) No person, in the course of any

profession, business or trade, having to use an instrument for measuring, weighing or determining quality, shall fraudulently use it so as to give less or more than the weight, measure or level determined by law for such instrument in use, or by the aid of any other instrument or means adversely affect the measuring, weighing or quality determining capacity of such instrument in use. (2) A person who commits or causes to commit an offence under sub-section (1) shall be liable to imprisonment for a term up to three years and a fine of up to thirty thousand rupees. 20.

Weights and Measures Other than Standard Weights and Measures Not to be Brought into Use: (1) Notwithstanding anything to the contrary in any law or practice in force, after three months from the date of coming into force of this Act in any area or in respect of any transaction or goods, no weight or measure other than the standard weight or measure shall be used, nor shall the price of any goods be fixed or the quantity specified by any such unit of weight or measure, in such area or in respect of such transaction or goods, unless otherwise permitted by the Government of Nepal under Sections 14 and 24. (2) If, in any contract or transaction relating to any article of trade, according to any custom, usage, practice or dealing, any trader, seller or buyer has been demanding or taking, or causing to demand or take, more or less than the quantity determined by weight or measure, such custom, usage, practice or dealing shall be deemed to have become void from the date of commencement of this Act. (3) Any act or transaction done in contravention of sub-section (1) shall have no legal validity. (4) A person or entity producing or selling or distributing goods shall keep at the relevant industry or place of sale or distribution, a weight or measure or a measuring or weighing instrument to ascertain the quantity by weight or measure of the goods produced or sold or distributed by him/her/it. (5) While carrying out commercial transactions, a weight or measure or a measuring or weighing instrument permitted for such transaction shall be used. Transactions shall not be carried out in any other manner without using such weight or measure or measuring or weighing instrument. 21. **Direction May be Given to Use Only Measure or Only Weight for Specific Purposes:** Notwithstanding anything contained in this Act, the Government of Nepal may, by notification published in the Nepal Gazette, from the date specified in that notification, direct that, within a specified area, in respect of any specified trade, transaction or contract, subject to specified conditions, business shall be conducted only by measurement or only by weighing. 21ka.

Functions, Duties and Powers of the Department: In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Department shall be as follows:?

- (a) to act as the central body in relation to weights and measures,
- (b) to maintain the standards of units of weights and measures and to preserve such standards,
- (c) to maintain traceability according to the international system of standards,
- (d) to examine or cause to examine weights or measures or measuring or weighing instruments used for commercial purposes,
- (e) to carry out activities relating to public awareness enhancement regarding the use of weights and measures instruments,
- (f) to monitor, in coordination with the relevant body of the province or local level, whether standard weights and measures or measuring and weighing instruments are being used pursuant to this Act,
- (g) to resolve any dispute arising in relation to the quantity of weight or measure,
- (j) to provide calibration services, and

(jha) to contact, coordinate and cooperate with international organizations relating to weights and measures.

21kha. Metrology Laboratory: There shall be a national level metrology laboratory in the Department for carrying out functions relating to examination, study, research and development concerning weights and measures. Chapter 3

Examination and Stamping of Weights and Measures

22. Commercial Weights and Measures to Bear Mark of Quantity and Symbol: Commercial weights or measures shall bear clearly marked symbols and quantities of the measure and weight they measure or weigh, and shall have a clear impression of the examination as prescribed. 23. Prohibition on Sale, Distribution or Use of Commercial Weights and Measures Not Stamped: Save as otherwise provided in Section 24, no commercial weight or measure or measuring or weighing instrument which has not been examined as prescribed and stamped with the mark of such examination by an Inspector shall be sold, distributed or used.

23ka. Power to Prohibit, Seize or Confiscate: (1) If it is found that any person is selling, distributing or using any weight or measure or measuring or weighing instrument in contravention of this Act, the Inspector may prohibit the use of, seize or confiscate such weight or measure or measuring or weighing instrument.

(2) The procedure relating to prohibiting the use, seizure or confiscation of weight or measure or measuring or weighing instrument under sub-section (1) shall be as prescribed. 24.

Power of Government of Nepal to Exempt: The Government of Nepal may, by notification published in the Nepal Gazette, make provision as follows: (a) to permit, in any particular type of transaction or in trade with foreign countries, the use of weights and measures or measuring and weighing instruments of a system other than the metric system, after certification even if not examined, (b) to permit a particular type of measuring or weighing instrument to be brought into use only after it has been examined, and (c) to exempt a particular type of measuring or weighing instrument from being required to be examined. 25. License to be Obtained for Using Weights or Measures or Measuring or Weighing Instruments: Traders and businessmen shall, for using weights or measures or measuring or weighing instruments, within the prescribed time, pay the prescribed fee, register their names, and obtain a license from the Inspector. 26. Not to Carry Out Without Permit: No person shall, without obtaining a permit from the Inspector in the prescribed manner after paying the prescribed fee, manufacture, repair, sell or carry out the business of prescribed measuring or weighing services, any commercial weight or measure or measuring instrument or weighing instrument in the course of his/her business. 26ka. Model Approval to be Obtained: (1) A person or entity wishing to manufacture or import a measuring or weighing instrument shall obtain model approval from the Department before manufacturing or importing such instrument. (2) The design of a measuring or weighing instrument manufactured or imported under sub-section (1) shall not be altered. (3) The procedure for granting approval under sub-section (1) shall be as prescribed. 27. Weights and Measures of Sealed Packages: (1) Goods contained in a sealed package must bear a label clearly stating the weight or measure of such goods. No person shall sell, cause to be sold, or keep for the purpose of sale, a sealed package without a label. (2) If any separate declaration or information besides the label is required to be stated on a sealed package, such declaration or information shall be stated therein. (3) While stating the net quantity of the goods inside the package on the label of a sealed package, the quantity excluding the weight of the package or container of such goods kept for sale or distribution shall be stated. (4) The standard sizes of sealed packages, labels, limits of error, examination methods for determining net and gross quantities, and other provisions relating to sealed packages shall be as prescribed. 28.

Duties of Inspector: (1) The Inspector shall examine weights and measures and measuring and weighing instruments in the area and at the time specified by the Controller. (2) The Inspector shall examine weights or measures or measuring or weighing instruments brought for examination within his/her jurisdiction according to this Act and the Rules made under this Act; if found correct, he/she shall collect the prescribed fee and affix the stamp of examination as prescribed. (3) No weight or measure or measuring or weighing instrument that is required to be examined shall be kept unexamined. (4) The Inspector may go to any place where a commercial weight or measure or measuring or weighing instrument is kept, or where goods sold or given by means of such weight or measure or measuring or weighing instrument are kept, and examine the weight or measure or the weight or measure of such goods, or such weight or measure or measuring or weighing instrument. (5) The Inspector may order any trader or any person appointed by him/her for his/her work to produce any weight or measure or measuring or weighing instrument used by them or in their possession or kept in any place for the purpose of business, and all related documents, and such trader or person shall produce such instrument or document pursuant to such order. (6) If the Inspector has reason to suspect that any person has committed or is about to commit an offence under this Act in relation to any weight or measure or measuring or weighing instrument, he/she may take into his/her possession such weight or measure or measuring or weighing instrument, or the goods sold or given or about to be given by such weight or measure or measuring or weighing instrument, and all related documents. (7) If the Inspector has reason to suspect that the weight or measure of the goods in any sealed package is less than the weight or measure stated on the label of such package, he/she may break the seal of such package and examine the weight or measure of the goods in the package. (8) If, upon examination under sub-section (7), the weight or measure of the goods in the package is found incorrect, the Inspector may take the package and the goods contained therein into his/her possession; if found correct, he/she shall pay the reasonable price of the package to the owner of such package. (9) If any body or office of the province or local level within the Inspector's jurisdiction requests advice on matters relating to weights and measures and measuring or weighing instruments, the Inspector shall provide advice in that regard. 529.

Appeal: An appeal against a decision or order of punishment made by an Inspector pursuant to this Act may be made to the Controller within thirty-five days, and an appeal against a decision or order of punishment made by a District Court may be made to the concerned High Court within thirty-five days. Chapter 4 Punishment 530. Punishment: (1) The Inspector shall impose a fine on a person or entity committing an offence as follows: (a) if any act is done or caused to be done in contravention of sub-section (4) of Section 20, a fine of one thousand rupees to five thousand rupees, (b) if any direction given by the Government of Nepal pursuant to Section 21 is not complied with, or any act is done contrary to such direction, a fine of five thousand rupees to ten thousand rupees, (c) if any weight or measure or measuring or weighing instrument is used in contravention of Section 25, a fine of one thousand rupees to five thousand rupees, (d) if any act is done in contravention of Section 27, a fine of five thousand rupees to ten thousand rupees, (e) if, while selling or transacting on the basis of weight or measure of any goods, any person takes or causes to be taken, or gives or causes to be given, more or less than the quantity determined by such weight or measure which was agreed for purchase, sale or transaction, such person shall be liable to a fine of five thousand rupees to twenty-five thousand rupees, Provided, however, that in the case of construction materials, gold, silver or precious metals, petroleum products, LPG cylinders or industries, such person shall be liable to a fine of fifty thousand rupees to one hundred thousand rupees.

Explanation: For the purposes of this clause, "construction materials" includes cement, rebar, bricks, aggregates, sand, geotextile, paint, cement board, wood used for doors and windows, glass, UPVC, and electrical wires.

(f) if any act is done in contravention of sub-section (1) and (5) of Section 20, Section 23, 26 and 26ka, if such act is abetted, if any obstruction is caused to the Inspector in the performance of his/her duties under this Act, a fine of up to twenty-five thousand rupees, and

(g) if a person does any other act contrary to this Act other than those mentioned in this Section, a fine of up to ten thousand rupees.

(2) If any person forges or makes or causes to be made any standard weight or measure or measuring or weighing instrument that is less or more, or knowingly uses or keeps for the purpose of using or sells or causes to sell such forged or less or more measuring or weighing instrument as genuine, or damages or forges or causes to forge or makes or keeps a stamp to be affixed to a standard weight or measure or measuring or weighing instrument under this Act, or by using any other instrument or such thing other than the actual weight or measure or measuring or weighing instrument causes or keeps or causes to keep for the purpose of causing less or more, or by using any technology creates forged software causing less or more in the quantity of weight or measure, he/she shall be liable to imprisonment for a term up to three years or a fine of three hundred thousand rupees to five hundred thousand rupees or both.

(3) If an Inspector knowingly affixes a stamp on a weight or measure or measuring or weighing instrument in contravention of this Act, he/she shall be liable to imprisonment for a term up to one year or a fine of up to ten thousand rupees or both.

*30ka. Realisation as Government Dues: (1) A fine payable pursuant to a decision made by the Inspector under this Act shall be deposited in the concerned office within thirty-five days from the date of such decision.

(2) If the amount of fine is not deposited within the period under sub-section (1), such amount shall be recovered as government dues in accordance with the prevailing law by the office or officer prescribed by the Government of Nepal. Chapter?5

Miscellaneous

31. Legal Validity of Stamped Weights or Measures or Measuring or Weighing Instruments: A weight or measure or measuring or weighing instrument stamped in accordance with this Act or the Rules made under this Act shall be deemed correct until proven incorrect by a court. 32.

Liability for Offence Committed by an Incorporated Body or Firm: (1) If an offence under this Act is committed by an incorporated body or a firm, at the time of such offence, in the case of a firm, the partners of such firm, and in the case of an incorporated body, the chief administrative officer or officers managing such body, shall be deemed guilty and liable to punishment. Provided, however, that if such partner or the chief administrative officer or officers managing the body prove that they made every possible effort to prevent such offence or that they had no knowledge of such offence, they shall not be liable to punishment. (2) Notwithstanding anything contained in sub-section (1), if an incorporated body or a firm commits an offence under this Act, and it is proved that such offence was committed with the consent or negligence of, in the case of a firm, the partners of such firm, or in the case of an incorporated body, the chief administrative officer or officers of such body, such partner or chief administrative officer or officers shall be deemed to have committed the offence and shall be liable to punishment. 33. Protection for Acts Done in Good Faith: No suit or other legal proceedings shall be instituted against any government employee in respect of any act done or intended to be done in good faith pursuant to this Act. ?33ka. Investigation of Cases: (1) The investigation and filing of a case relating to an offence punishable under Section 19ka., 19kha. and 5sub-section (2) of Section 30 shall be conducted by the Inspector. (2) The investigation and filing of a case relating to an offence punishable

under 5sub-section (3) of Section 30 shall be conducted by an officer designated by 5the Controller. (3) After the investigation work under sub-section (1) or (2) is completed, the investigating officer shall submit the investigation report to the government attorney before the limitation period for filing the case expires. 34. Government of Nepal to be Plaintiff: Cases under this Act shall be instituted in the name of the Government of Nepal as plaintiff. 35. Delegation of Powers: The Government of Nepal may, by notification published in the Nepal Gazette, delegate all or any of the powers conferred by this Act or the Rules made under this Act to an officer specified in such notification for exercise by such officer. ?35ka.

Province and Local Level May Monitor: (1) The province and local level may, as necessary, monitor whether weights and measures and measuring or weighing instruments have been examined or not, whether licences and permits have been obtained or not, and whether such licences and permits have been renewed or not, pursuant to this Act. (2) The province or local level may monitor in coordination with the Department based on the standards determined by the Government of Nepal. (3) If, during monitoring under sub-section (1) or (2), any act contrary to this Act is found, the monitoring officer shall send a written communication to the Department or its subordinate office for action. (4) If, during the monitoring under sub-section (1) or (2), any matter is found that requires action according to the relevant provincial or local law, the province or local level may also take action according to such law. (5) If a written communication for action is received from the province or local level under sub-section (3), the Department or office shall immediately